



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing ten judgments on Tuesday 4 July 2017 and 79 judgments and / or decisions on Thursday 6 July 2017.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 4 July 2017

[Obajdin v. Croatia \(application no. 39468/13\)](#)

The applicants, Josip Obajdin and his father Pave Obajdin, are Croatian nationals who were born in 1983 and 1959 respectively and live in Ludbreg and Slunj (Croatia). The case concerns the investigation into the killing of the Obajdins' close relatives, allegedly by Croatian soldiers during the Croatian Homeland War¹.

On 8 August 1995, Josip Obajdin's mother and grandmother were killed in their home in Veljun (in the region of Krajina) following a military operation, codenamed "Storm", carried out by the Croatian authorities to regain control of the region from Serbian paramilitary forces. In January and February 2002, police conducted interviews of the applicants and military units stationed in the area at the time of the deaths. Josip Obajdin stated in particular that his mother and grandmother had been killed by the Croatian army when refusing to hand over the keys to their car; Pave Obajdin had learnt about the killing of his wife and her mother from his son. The police continued interviews in October 2006 and January 2007 and then, in February 2007, filed a criminal complaint with the State Attorney's Office against unknown perpetrators in connection with the deaths. The applicants were interviewed again in October 2012, by a Deputy State Attorney and repeated their previous statements. From then on until October 2015, the police and prosecutors obtained information about the Croatian army units which had been in Veljun just after the military operation, the identity of their commanders and all their members and took statements from the members of these units. None of them, however, had any information about those who were responsible for the killings.

Relying on Article 2 (right to life) of the European Convention on Human Rights, the applicants complain that the authorities did not take adequate steps to investigate the death of their family members and to bring the perpetrators to justice.

[Halldórsson v. Iceland \(no. 44322/13\)](#)

The applicant, Svavar Halldórsson, was born in 1970 and lives in Hafnarfjörður (Iceland). At the relevant time he worked as a journalist for the Icelandic National Broadcasting Service. The case concerns his liability for defamation, resulting from three instances in which he reported on a loan which had been made from an Icelandic company to a shelf company based in Panama. He reported that the loan had been written off by the Icelandic company, but that the Icelandic authorities believed that the proceeds had been divided between the owner of the company and two of his business partners. One of the partners filed defamation proceedings against Mr Halldórsson and was ultimately successful in the Supreme Court. Mr Halldórsson was ordered to pay 300,000 Icelandic Krónur in damages, plus 1,000,000 Krónur in costs, and the implications about the claimant in Mr Halldórsson's news broadcasts were declared null and void.

¹ The Croatian War of Independence from 1991 to 1995.

Mr Halldórsson complains that these obligations violated his rights under Article 10 (freedom of expression). In particular, he claims that the interference with his right to freedom of expression did not have a legitimate aim and was not necessary in a democratic society.

[Kącki v. Poland \(no. 10947/11\)](#)

The applicant, Marcin Kącki, is a Polish national born who was born in 1976 and lives in Poznań (Poland). Mr Kącki is a journalist who was found criminally responsible for the defamation of a politician. In December 2006 he published an interview in which a member of a political party describes her interactions with party officials. In particular, she describes how she was offered a paid position in the office of a Member of the European Parliament in exchange for sexual favours, but was later told that the position was given instead to the MEP's daughter. The MEP filed an indictment against Mr Kącki, claiming that he should be made criminally liable for his allegations of nepotism. The courts ruled in the MEP's favour, and Mr Kącki was ordered to pay a fine to charity of 1,000 Polish zlotys, plus costs.

Mr Kącki complains that the authorities failed to properly consider his rights under Article 10 (right to the freedom of expression) when making him criminally liable for publishing the interview.

[S.C. Service Benz Com S.R.L. v. Romania \(no. 58045/11\)](#)

The applicant, S.C. Service Benz Com S.R.L., is a Romanian company incorporated in 1993 with its registered office in Adunații Copăceni (Romania). The case concerns the confiscation of two oil tankers belonging to the applicant company, which had been transporting, for another company, goods that were not accompanied by the requisite legal documents.

On 11 May 2010 the applicant company, whose main activity is the retail distribution of fuel in specialised outlets, entered into a contract with company N. for the carriage of automobile lubricants and other goods. The contract stipulated that N. had to provide the transport documents with the requisite information.

On the same day, two oil tankers of the company S.C. Service Benz Com S.R.L. were loaded in Bulgaria and driven to Romania, where they were stopped for inspection by the Romanian financial brigade. After laboratory analyses, the Romanian authorities found that the liquid transported did not have the same specifications as those indicated in the documents. They thus imposed on company N., as owner of the goods, a fine of about 23,000 euros for non-compliance with the rules governing products subject to excise duty. They also confiscated the goods and the two oil tankers belonging to the company S.C. Service Benz Com S.R.L.

S.C. Service Benz Com S.R.L. appealed against the decision, challenging the confiscation of its two oil tankers. On 15 November 2010 the Slobozia Court of First Instance upheld its complaint and annulled the part of the procedure corresponding to the confiscation. However, on an appeal by the tax authorities, the Ialomița County Court quashed the judgment and dismissed the complaint by S.C. Service Benz Com S.R.L. as ill-founded.

Relying on Article 6 (right to a fair hearing) and Article 1 of Protocol No. 1 (protection of property), the company S.C. Service Benz Com S.R.L. complains about the confiscation of its two oil tankers.

[Ichetovkina and Others v. Russia \(nos. 12584/05, 45074/05, 45690/05, 11343/06, 51264/07, and 59378/08\)](#)

The applicants are Natalya Ichetovkina, Petr Kosteletskiy, Dmitriy Dubrovskiy, Andrey Novoseletskiy, and Konstantin Chernenko (five Russian nationals), and Viktor Globinko, an Uzbek national. They were born in 1984, 1957, 1983, 1973, 1978, and 1984 respectively and live in Arkhangelsk, Murmashi (Murmansk region), Tula, Krasnodar, Kharp (Yamalo-Nenetskiy region), and Novosibirsk (all in Russia). The applicants all complain that they were not provided with sufficient legal assistance during the appeal hearings of their criminal cases.

All of the applicants were criminally prosecuted between 2004 and 2008 for various criminal offences. On appeal, their cases were examined and upheld by the appeal courts in the absence of counsel. Relying on Article 6 §§ 1 and 3 (c) (right to a fair trial / right to legal assistance of own choosing), the applicants all complain that they were not provided with a legal-aid lawyer during the appeal proceedings.

The Government reopened the proceedings against four of the applicants following the communication of their respective applications to the court – during which the applicants were provided with legal representation but they further complain that this legal assistance was also inadequate.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Aleksandravičius and Others v. Lithuania (nos. 32344/13, 43576/13, 49516/13, 65956/13, and 71139/13)

Albertina Carvalho e Filhos Lda v. Portugal (no. 23603/14)

Glod Greek-Catholic Parish v. Romania (no. 53528/07)

Dergalev v. Russia (no. 39655/10)

Isakov and Others v. Russia (nos. 54446/07, 51229/08, 16824/10, 44423/10, 43115/11, 77991/11, 78379/11, 78381/11, 78387/11, 1735/12, 2866/12, 10883/12, 18632/12, 31455/12, 35559/12, 69342/12, 73777/12, 78747/12, 5023/13, 10131/13, 3376/14, 14407/14, 32634/14, and 68565/14)

Thursday 6 July 2017

[Trivkanović v. Croatia](#) (no. 12986/13)

[Zdjelar and Others v. Croatia](#) (no. 80960/12)

Both cases concern investigations into killings and/or disappearances during the Croatian Homeland War².

The applicant in the first case, Stoja Trivkanović, is a Croatian national who was born in 1950 and lives in Sisak (Croatia). On 25 August 1991, Ms Trivkanović's former husband and their two sons were abducted by members of the "Wolves" unit of the Sisak police. Her former husband's body was found in a river, but no trace of her sons was ever found. The Sisak police lodged a criminal complaint with the Sisak State Attorney's Office regarding the death in September 1991 when the autopsy revealed he had been shot. Ms Trivkanović subsequently – in June 1993 – lodged a criminal complaint with the State Attorney's Office, which later coincided with a broader police enquiry into the killing of individuals of Serb ethnicity during the war. Ms Trivkanović and several potential witnesses were thus interviewed by the police in November 1997. Following new evidence coming to light, police then interviewed many former Croatian soldiers as witnesses between October 2002 and February 2003. In October 2006, the death of her former husband and the disappearance of her sons were classified as war crimes against the civilian population. The investigation of these war crimes continued in the form of interviews until 2011 when the authorities charged the commander of the police forces in the area for failing to prevent the killings of individuals of Serb ethnicity. He was convicted and, in 2014, the Supreme Court upheld his conviction and handed down a 10-year sentence.

² The Croatian War of Independence from 1991 to 1995.

The applicants in the second case are nine brothers and sisters, all Croatian nationals: Janko Zdjelar, Branko Zdjelar, Dragica Zdjelar, Bosiljka Materkić, Mara Rebić Zdjelar, Mile Zdjelar, Miloš Zdjelar, Slavko Zdjelar, and Čedo Zdjelar. Four of them live in Croatia, three in Serbia, one in Bosnia and Herzegovina and one in the United States of America. On 8 August 1995, their father, Milan Zdjelar, was killed in Crni Potok (a village in the region of Krajina) following a military operation, codenamed “Storm”, carried out by the Croatian authorities to regain control of the region from Serbian paramilitary forces. The authorities only learnt of his death in October 2001 when his name figured on a list of those who had been killed during Operation Storm. A police enquiry was immediately opened and his daughter, Dragica, who had witnessed the killing, was interviewed in March 2004. She stated during the interview that her father had been killed by Croatian soldiers, members of the “Tigers” brigade, in their village (Crni Potok) when he had run away from them into some woods. The police and prosecutors took statements from the applicants and other possible witnesses, including neighbours and inhabitants of Crni Potok, as well as members of the “Tigers” brigade. None of the witnesses had, however, any relevant information about those who were responsible for the killing.

Relying in particular on Article 2 (right to life) and Article 14 (prohibition of discrimination), all the applicants complain that the investigation into the killings/disappearances were inadequate and that the national authorities failed to investigate the role that Serb ethnicity played in the deaths of Ms Trivkanović’s former husband or the other applicants’ father.

[Boudelal v. France \(no. 14894/14\)](#)

The applicant, Chérif Boudelal, is an Algerian national who was born in 1945 and lives in Avignon. The case concerns the French authorities’ refusal to reinstate him as a French national.

Mr Boudelal has lived lawfully in France since 1967. In 2009 he applied for French nationality by reinstatement.

The Ministry for immigration, integration, national identity and supportive development rejected his application on the ground, in particular, that he had links with “a movement responsible for violent actions and advocating a radical practice of Islam: the *Paix comme Palestine* collective”, of which he was Chair, being the local branch of an organisation “close to the ideology of Hamas (Palestinian Muslim Brotherhood)”.

Mr Boudelal appealed to the Ministry for immigration, integration, national identity and supportive development. The Minister’s deputy decided to confirm the refusal.

Mr Boudelal and his wife, who had met with a similar refusal, applied to the Nantes Administrative Court for the annulment of the decision. On 22 February 2012 the court dismissed their applications. The Nantes Administrative Court of Appeal upheld the judgment on 31 May 2013. It observed that it was first and foremost the responsibility of the minister for naturalisations to give an assessment of the interest in granting naturalisation or reinstatement of French nationality to a foreigner who applied for it, and that in the context of the “examination of appropriateness” the Minister was also entitled “to take into account any unfavourable information received as to the applicant’s conduct”. The application for legal aid filed by Mr Boudelal for the cassation proceedings was rejected on the ground that no serious ground of appeal on points of law could be raised against the judgment of the court below.

Relying on Articles 10 (freedom of expression), 11 (freedom of assembly and association), and 9 (freedom of thought, conscience and religion), Mr Boudelal complains that the domestic authorities took their decision on the basis that he was a campaigner for the cause of Palestinians and of immigrants. The applicant complains of a “denial of nationality for a thought-crime”.

[Perelman v. Germany \(application no. 32745/17\) - > moved to 6 July](#)

The applicants, Bluma and Alain Perelman, are French nationals who were born in 1947 and live in Frankfurt/Main (Germany). The case concerns their complaint that they were considered members of the Frankfurt Jewish community without their consent.

When the applicants moved to Frankfurt in 2002, they registered their residence with the local authorities. The registration form included a field about their religion and both indicated “Mosaic”. A few months later the applicants received a letter from the Frankfurt Jewish community welcoming them as new members. They opposed membership. As the community did not accept their objection, the applicants, as a precautionary measure, resigned their membership with effect from the end of October 2003. The Frankfurt tax office levied a church tax on their income for the period from November 2002 to October 2003. The applicants brought an action to obtain a declaration that they had not been members of the Jewish community during that time. In a first judgment the Federal Administrative Court declared that, in the public sphere, the applicants’ membership could not have legal effect. Following a constitutional complaint of the Jewish community the Federal Constitutional Court quashed the judgment and remitted the case to the Federal Administrative Court which, in a second judgment, dismissed the applicants’ claim. Before the applicants lodged their application with the European Court they filed a constitutional complaint with the Federal Constitutional Court which is still pending.

Relying on Article 9 (freedom of thought, conscience and religion) and Article 11 (freedom of assembly and association) of the European Convention, the applicants complain that the domestic courts’ acknowledgement of their membership of the Jewish community of Frankfurt was not based on their consent because they had not declared their willingness to join the Frankfurt Jewish community.

[Sadkov v. Ukraine \(no. 21987/05\)](#)

The applicant, Vitaliy Anatolyevich Sadkov, is a Ukrainian national who was born in 1978 and lives in Ukraine. He complains of a number of human rights violations in the course of his arrest, prosecution and conviction for robbery and murder. Mr Sadkov was arrested in June 2004 and held by the police or in pre-trial detention until his conviction in March 2007 (after which he was sentenced to 15 years’ imprisonment).

Relying on Article 3 (prohibition of torture), he complains that he was ill-treated by police, prison guards and the prosecutor, that his complaints about these incidents were never duly examined, and that he was denied medical treatment. Further relying on Article 5 (right to liberty and security), Mr Sadkov complains of being detained unlawfully prior to his trial: for certain periods, because he was held without a court order; and for other periods, because the court decisions ordering his detention had been issued unlawfully and had not been based on relevant and sufficient reasons. With regards to Article 6 §§ 1 and 3 (c) (right to a fair trial), Mr Sadkov complains that he was not given access to a lawyer after his initial arrest – and was forced to make self-incriminating statements. Finally, relying on Article 34 (right to individual petition), he complains that the authorities blocked his correspondence with the European Court and refused to provide him with copies of documents he wished to submit to it.

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Doller v. Austria (no. 20527/13)

Gierlinger v. Austria (no. 576/15)

Fekete v. Belgium (no. 12208/16)
Sejdinović v. Bosnia and Herzegovina (no. 8760/16)
Stoilova v. Bulgaria (no. 19636/16)
Becht v. Germany (no. 79457/13)
Intzevidis and Others v. Hungary (nos. 27751/13, 28099/13, 30704/16, and 30707/16)
Pető and Others v. Hungary (nos. 31471/13, 39209/13, 42474/13, 43185/13, 45126/13, and 54822/13)
Toth v. Hungary (no. 40909/11)
Brito Martins v. Portugal (no. 48815/12)
Dumitru v. Portugal (no. 28794/16)
Kiraly v. Romania (no. 60108/11)
Moraru v. Romania (no. 42103/15)
Otto Wolff Handelsgesellschaft mbH v. Romania (no. 53877/10)
Suhov v. Romania (no. 44665/15)
Vancea v. Romania (no. 59646/13)
Agapov and Others v. Russia (nos. 40325/08, 60359/08, 60414/09, 18812/10, and 19293/10)
Badalov and Others v. Russia (nos. 24904/07, 66983/09, 11858/11, 22656/14, 14672/16, 22083/16, and 22309/16)
Chepinoga and Others v. Russia (nos. 48836/09, 41652/12, 27066/13, 19691/14, and 35134/14)
Gordeyev and Others v. Russia (nos. 61662/13, 64443/13, 67201/13, 11204/14, 13237/14, and 15444/14)
Ivanov and Others v. Russia (nos. 48338/15, 9553/16, 55048/16, 55355/16, and 55364/16)
Khomenko and Others v. Russia (nos. 3413/04, 4520/05, 24342/06, 41617/06, 14768/08, 59847/08, 44283/09, and 60577/10)
Kirillov and Others v. Russia (no. 41421/06)
Kolesnikov v. Russia (no. 33047/13)
Kovrigin and Matskevich v. Russia (nos. 63156/10 and 10322/16)
Kozhokar and Others v. Russia (nos. 61766/11, 73809/13, 37262/15, 58944/15, 62524/15, 62740/15, 24684/16, and 31267/16)
Kudryavtsev and Others v. Russia (nos. 50487/14, 7250/16, 7403/16, 14645/16, 21221/16, 21351/16, 22078/16, and 24581/16)
Kulcharov v. Russia (no. 55859/08)
Lysenkov and Others v. Russia (nos. 1902/16, 8754/16, and 8799/16)
Malygin and Popov v. Russia (nos. 1013/13 and 12310/13)
Memetov and Others v. Russia (nos. 9070/14, 12341/14, 13214/14, 15237/14, 18426/14, 18466/14, 60029/15, and 19133/16)
Mochalova v. Russia (no. 15432/10)
Obyedkov and Others v. Russia (nos. 9884/09, 14925/11, 39374/13, 68093/13, 75729/13, 11511/14, and 26549/14)
Orudzhov and Others v. Russia (nos. 53494/09, 10862/16, 53786/16, and 55263/16)
Ozhegov v. Russia (no. 59935/10)
Petrov v. Russia (no. 52873/11)
Polunin and Others v. Russia (nos. 16342/11, 60418/15, 31026/16, 43690/16, 44721/16, 52610/16, and 52807/16)
Shekhotkina and Others v. Russia (nos. 10075/06, 18535/06, 21469/06, 14998/07, 53854/10, 20769/11, 28103/14, and 29783/14)
Shirokikh and Others v. Russia (nos. 30532/07, 36187/10, 11743/16, 28308/16, 50480/16, 50682/16, and 50777/16)
Shmatko and Others v. Russia (nos. 20857/05, 9680/06, 23211/06, 24314/07, 2639/10, 28294/13, and 78568/13)
Shulunov v. Russia (no. 5270/06)

Smolin and Shubin v. Russia (nos. 11470/16 and 22147/16)
Sofyin and Others v. Russia (nos. 57172/08, 25156/13, and 48540/16)
Starikov and Andreyev v. Russia (nos. 14128/14 and 20482/14)
Torlin and Shishkin v. Russia (nos. 43463/16 and 44209/16)
Tselovalnik and Others v. Russia (nos. 17957/09, 33355/15, 20554/16, 43651/16, 44739/16, 44871/16, 60559/16, and 60702/16)
Vasilyev and Others v. Russia (nos. 2136/07, 586/08, 13627/09, and 41936/09)
Vorononkov and Others v. Russia (nos. 44277/08, 16335/10, 16379/10, 16407/10, 23809/10, 25342/10, and 53851/10)
Yudina and Others v. Russia (nos. 12860/11, 77799/14, 51648/15, 51675/15, 52102/15, 39996/16, 55432/16, and 56142/16)
Zhak v. Russia (no. 15190/06)
Zhdanov and Others v. Russia (nos. 43077/12, 18248/13, and 41280/13)
Zubkov and Others v. Russia (nos. 2030/05, 15058/08, 2886/09, and 7941/09)
Đurić v. Serbia (no. 39918/10)
Jovanović v. Serbia (no. 48793/11)
Pavković v. Serbia (no. 45204/04)
Michael v. Slovenia (no. 56198/07)
Aladağ v. Turkey (no. 41709/08)
Bozkurt v. Turkey (no. 53374/11)
Demirkol and Others v. Turkey (nos. 41831/10, 46432/10, 46855/10, 47102/10, 47664/10, 48058/10, 50170/10, 50418/10, 51154/10, 55375/10, 57982/10, 74618/10, 75433/10, 9797/11, 15115/11, 15179/11, 17827/11, 17974/11, and 23809/11)
Eygi v. Turkey (no. 43731/05)
Güçlü and Others v. Turkey (nos. 1702/10, 33922/11, 1645/12, and 11310/12)
Kabul v. Turkey (no. 10702/12)
Kılıçaslan v. Turkey (no. 21903/12)
Özkan and Others v. Turkey (nos. 5583/06, 12318/06, and 13236/06)
Sağaltıcı v. Turkey (no. 16927/10)
Tilen v. Turkey (no. 41420/06)
Yıldırım v. Turkey (no. 81773/12)
Dyachenko and Others v. Ukraine (nos. 26417/08, 36795/08, 9783/09, 826/11, 50131/11, 37112/13, 43345/13, 53634/13, and 44853/14)
Kalynovska v. Ukraine (no. 27114/11)
Kantsara and Others v. Ukraine (nos. 7762/10, 60735/15, 30867/16, 32689/16, and 54467/16)
Khoroshev v. Ukraine (no. 66327/13)
Kulyk and Others v. Ukraine (no. 10035/07 and 191 other applications)
Novikov v. Ukraine (no. 41103/12)
Moohan and Gillon v. the United Kingdom (nos. 22962/15 and 23345/15)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.